

2020 C L D 1093

[Lahore]

Before Ayesha A. Malik and Jawad Hassan, JJ

UNITED BANK LIMITED---Appellant

Versus

GULL ZAMAN KHAN---Respondent

F.A.O. No. 28169 of 2017, heard on 4th February, 2019.

Financial Institutions (Recovery of Finances) Ordinance (XLVI of 2001)---

---S. 9---Procedure of Banking Court---Scope---Respondent had filed a suit against the appellant with the averments that he had paid off the entire liability in respect of Credit Card under settlement letter---Banking Court after issuance of summons had proceeded ex parte against the appellant and disposed of the suit---Contention of appellant was that the Banking Court without calling evidence had disposed of the suit whereas argument of respondent was that as per settlement letter, which was acknowledged by the appellant Bank, he had paid off his entire liability---High Court, on the joint request of both the parties, allowed the appeal, set aside the impugned order and remanded the matter to the Banking Court for decision afresh.

Salman Afzal Malik for Appellant.

Asim Khan Sherwani for Respondent.

Date of hearing: 4th December, 2019.

JUDGMENT

JAWAD HASSAN, J.---Through the instant First Appeal Against Order filed under section 22 of the Financial Institutions (Recovery of Finances) Ordinance, 2001 (the "Ordinance"), the Appellant seeks setting aside of order dated 24.04.2017, passed by the Judge Banking Court-II, Lahore (the "Banking Court") whereby suit filed by the Respondents was disposed of

2. Learned counsel for the Appellant inter alia submitted that the impugned order is against law and facts; that the impugned order has been passed in a hasty manner without providing proper opportunities; that the Banking Court without furnishing evidence regarding alleged payment has passed impugned order merely on the basis of presumptions and assumptions; that the impugned order suffers from legal infirmities and material illegalities; that the impugned order has been passed against the verdict of the apex Court, as

such liable to be set aside.

3. On the other hand learned counsel for the Respondent submitted that the impugned order has rightly been passed and there is no illegality in the impugned order. As such, the instant Appeal is liable to be set aside.

4. We have heard the arguments of the learned counsel for the parties and have perused the record.

5 From the perusal of record it reveals that the Respondent filed a suit against the Appellant with the averments that he has paid off his entire liability in respect of Visa Card under settlement letter dated 30.06.2008. In pursuance of which the Banking Court vide order dated 22.03.2016 issued summons to the Appellant as per section 9(5) of the Ordinance. Thereafter, the Banking Court proceeded against the Appellant ex-parte vide impugned order and disposed off the suit.

6. The contention of the learned counsel for the Appellant is that the Banking Court without calling evidence disposed off the suit whereas argument of learned counsel for the Respondent is that the Respondent has paid off his entire liability as per settlement letter dated 30.06.2008 which was acknowledged by the Appellant Bank.

7. In order to resolve above controversy, at the joint request of both the parties, the instant F.A.O. is allowed and the impugned order is hereby set aside. The case is remanded to the Banking Court for its decision afresh with the direction to decide the case strictly in accordance with.

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Case remanded.